



Australian Government
Civil Aviation Safety Authority

CIVIL AVIATION SAFETY AUTHORITY

Enterprise Agreement 2023–2026

February 2024

PART A – PURPOSE

1. Purpose of this Agreement

- 1.1. This Agreement deals comprehensively with the terms and conditions of employment in CASA for employees covered by this Agreement.

PART B – TECHNICAL MATTERS

2. Title of this Agreement

- 2.1. This Agreement will be known as the “Civil Aviation Safety Authority Enterprise Agreement 2023-2026” and is made pursuant to section 172 of the FW Act.

3. Persons covered by this Agreement

- 3.1. This Agreement covers:
- 3.1.1. the CEO/DAS, for and on behalf of the Commonwealth of Australia as the employer;
 - 3.1.2. all employees in CASA employed under the *Civil Aviation Act 1988* other than:
 - 3.1.2.1. the occupant of the Director of Aviation Safety under the *Civil Aviation Act 1988*;
 - 3.1.2.2. CASA managers classified as Senior Managers or Medical Officers as prescribed by a determination of the Director or employees engaged under a common law contract;
 - 3.1.2.3. persons who are providing service to or within CASA (under a contract for services) but who are employed or paid by a person or body other than CASA; and
 - 3.1.2.4. invigilators engaged by CASA from time to time.
 - 3.1.3. subject to notice being given in accordance with section 183 of the Fair Work Act 2009, and the following employee organisations which were a bargaining representative for this Agreement:
 - 3.1.3.1. Australian Federation of Air Pilots (AFAP)
 - 3.1.3.2. Australian Licensed Aircraft Engineers Association (ALAEA)
 - 3.1.3.3. Community and Public Sector Union (CPSU)
 - 3.1.3.4. Association of Professional Engineers, Scientists and Managers Australia (APESMA – Professionals Australia).

4. Period of operation

- 4.1. This Agreement will commence operation on the seventh day after the date on which FWC approves this Agreement. The nominal expiry date will be 16 November 2026.

5. Delegations

- 5.1. The CEO/DAS may delegate to or authorise any person to perform any or all of their powers and functions under this Agreement, including this power of delegation, and may do so subject to conditions.

6. Definitions

6.1. For the purpose of this Agreement, unless the contrary intention appears:

Award means the *Australian Government Industry Award 2016* (or its successor) as varied from time to time.

CASA means the Civil Aviation Safety Authority.

The CASA capability framework describes the core capabilities that our employees need for CASA to achieve its outcomes in an increasingly complex and changing environment. The core capabilities are aligned to our Values, Work Level Standards and Training Pathways.

CASA employment means continuous service with:

- i. CASA and its predecessors;
- ii. Australian Public Service;
- iii. Parliamentary Service (Commonwealth);
- iv. Australian Defence Forces; and/or
- v. Commonwealth authorities and bodies including those specified under regulation 8 of the *Long Service Leave (Commonwealth Employees) Regulation 2016*.

CASA values mean those values set out in the *Values and Code of Conduct Directive*.

CEO/DAS means the Chief Executive Officer and Director of Aviation Safety, the occupant of the office of Director of Aviation Safety appointed under section 74 of the *Civil Aviation Act 1988*.

Child means a biological child, adopted child, foster child, stepchild, or ward.

CTM means Certificate Team Manager

De facto partner means a person who, regardless of gender, is living in a common household with the employee in a bona fide, domestic, interdependent partnership, although not legally married to the employee.

Delegate means someone to whom a power or function has been delegated.

Dependant means the employee's spouse, or defacto partner, a child, a parent or aged relative of the employee or the employee's spouse or de facto partner, who ordinarily lives with the employee and who is substantially dependent upon the employee. Dependant also includes a child of the employee who does not ordinarily live with the employee but for whom the employee provides substantial financial support.

Employee means a person employed by CASA under the *Civil Aviation Act 1988* on a full time or part time basis, regardless of whether they are permanent employees, fixed term employees or casual employees.

Employee representative means:

- i. an official, officer or employee of a registered union or industrial association; or
- ii. a workplace representative of a registered union or industrial association; or
- iii. other representative(s) chosen or otherwise nominated by the employee(s) in a workplace to represent employee views to CASA.

Employer means CASA as represented by the CEO/DAS.

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Family and domestic violence has the same meaning as in section 106B(2) of the FW Act.

FOI means Flying Operations Inspector.

FTE means Flight Training Examiner.

FWC means the Fair Work Commission.

FW Act means the *Fair Work Act 2009*.

Household member means any person who lives with the employee.

Immediate family means:

- a spouse, former spouse, de facto partner or former de facto partner of the employee;
- a child, parent, grandparent, grandchild, or sibling of the employee;
- a child, parent, grandparent, grandchild, or sibling of a spouse, former spouse, de facto partner or former de facto partner of the employee;
- a member of the employee's household; or
- a person with whom the employee has a relationship of traditional kinship where there is a relationship or obligation, under customs and traditions of the community or group to which the employee belongs.

LSL Act means the *Long Service Leave Act 1976*.

Manager means a manager or delegate who is an employee with operational responsibility for managing other employee/s.

National Employment Standards means the standards set out in Part 2–2 of the FW Act.

Overtime barrier refers to the classification level above which an employee would not be eligible to receive overtime payments or similar allowances for working beyond the ordinary hours of work. The classification level for this purpose in CASA is the Corporate Services Level 3 (**CSL3**) or equivalent level. Classifications with a minimum salary point greater than the salary at CSL3 Pay Point G are above the overtime barrier.

Partner means a spouse or de facto partner.

Primary caregiver means a pregnant employee with an entitlement to paid or unpaid leave under clause 64, or an employee other than a casual employee who has primary care responsibility for a child who is born to them or who is adopted or in long-term foster care as per the clauses on adoption and long-term foster care in this Agreement.

PS means Professional Services.

Secondary caregiver means an employee, other than a pregnant employee or casual employee, who has secondary care responsibility for a child who is born to them, or for a child who is adopted or in long-term foster care as per the clauses on adoption and long-term foster care in this Agreement.

Settlement Period means the four-week period, commencing every second payday, for flexitime purposes.

Service has the same meaning as defined in s22 of the FW Act

35.5.3. An employee may take up to 4 days flex leave in each 4 week settlement period.

35.6. Flex credits

35.6.1. An employee accumulates a flex credit where they work longer than the ordinary hours of work that apply to them on a particular day. Total flex credits are reduced where an employee works less than their ordinary hours of work on a particular day.

35.6.2. The maximum flex credit an employee is able to have at the end of a settlement period is 30 hours for a full time employee and a pro rata amount for a part time employee.

35.6.3. Where an employee has more than the maximum flex credit at the end of a settlement period, their flex credits will be reduced to the maximum from the start of the subsequent settlement period unless the excess credit has been due to the employee's manager rejecting an application for flex leave due to operational requirements. In this case, the excess credit will be carried over to the next settlement period.

35.7. Flex debits

35.7.1. An employee accumulates a flex debit where they work less than the ordinary hours of work that apply to the employee. Total flex debits are reduced where an employee works more than their ordinary hours of work.

35.7.2. The maximum flex debit an employee is able to have at the end of a settlement period is 10 hours for full time employees and a pro rata amount for part time employees. An employee is able to have more than the maximum flex debit during the settlement period as long as it is reduced to less than the maximum by the end of the settlement period.

35.7.3. Where an employee has more than the maximum flex debits at the end of the settlement period, the excess flex debits will be treated as an unauthorised absence, salary will be deducted for the period of the absence and the employee's flex debits will be reduced to the maximum from the start of the next settlement period.

35.8. Impact of termination/separation on flex credits or debits

35.8.1. So long as it is not inconsistent with section 326 of the FW Act, on termination of employment an employee will not be paid out for unused flex credits or have salary deducted for any flex debits. Managers and employees endeavour to reduce the flextime credits or flextime debits before the termination/separation from CASA.

36. Overtime

36.1. Overtime eligibility

36.1.1. Only employees at or below the Overtime barrier are eligible for the payment of overtime subject to prior approval and the provisions of this clause.

36.1.2. Employees above the Overtime barrier are expected to work reasonable additional hours beyond the ordinary hours of work without the payment of overtime. Approval may be given for an employee above the Overtime barrier to be paid for overtime worked where such overtime is of an ongoing and significant nature and the employee has been requested by their manager to work such overtime.

- 36.1.3. Subject to Section 62 of the FW Act, overtime may be approved where an eligible employee is directed to work:
- 36.1.3.1. Monday to Friday outside the span of hours
 - 36.1.3.2. on a Saturday or Sunday
 - 36.1.3.3. on a public holiday; or
 - 36.1.3.4. Monday to Friday, during the span of hours but more than 8 hours on the day concerned, unless the employee has a flex debit at the time.
- 36.1.4. In emergency situations, prior approval for overtime may not be possible. Where this is the case, the employee must seek authorisation for the overtime from their manager as soon as possible after the overtime commences.
- 36.1.5. Overtime may be approved for part time employees where the employee is directed to work outside of their part time agreement.

36.2. Overtime rates

- 36.2.1. The overtime rates are as follows:
- 36.2.1.1. Monday to Saturday – time and a half for the first 3 hours and double time thereafter;
 - 36.2.1.2. Saturday (shift workers only) – double time;
 - 36.2.1.3. Sunday – double time;
 - 36.2.1.4. Public holiday – double time and a half.
- 36.2.2. Where overtime extends into the next day, the overtime rate will be based on the actual day the work is undertaken rather than the day on which the overtime commenced.
- 36.2.3. For overtime on Monday to Saturday, double time starts after 3 hours overtime has been worked on that day, even where the overtime worked has been in separate periods.
- 36.2.4. Overtime is calculated to the nearest quarter of an hour of the total amount of overtime for each overtime occurrence.

36.3. Minimum payment for separate overtime attendances

- 36.3.1. The minimum payment to apply where overtime is not continuous with ordinary hours of work is 4 hours.
- 36.3.2. A meal break taken before overtime commences does not break continuity of work for the purpose of clause 36.3.1.

36.4. Meal allowance and meal breaks for overtime

- 36.4.1. An overtime meal allowance is payable where an employee is required to perform overtime:

- 36.4.1.1. that is continuous with their ordinary hours of work without a meal break and it extends to the end of a meal period (see sub-clause 36.4.3);
- 36.4.1.2. that is continuous with their ordinary hours of work and the employee has taken an unpaid meal break prior to commencing overtime;
- 36.4.1.3. that is not continuous with their ordinary hours of work and is over and extends beyond the end of a meal period, subject to the employee not receiving a paid meal break.
- 36.4.2. The overtime meal allowance is paid through the payroll system as per the ATO guidelines. The overtime meal allowance rate will be adjusted annually as advised by the ATO.
- 36.4.3. For the purposes of determining overtime meal allowance, the specified meal periods are 7.00am to 9.00am, 12 noon to 2.00pm, 6.00pm to 7.00pm and Midnight to 1.00am.
- 36.4.4. Employees are not entitled to a meal allowance if they are in receipt of travel allowance or temporary accommodation allowance that includes a meal component for the meal break period.
- 36.4.5. An employee is also entitled to an overtime meal allowance where they are undertaking a short course of study at the request of CASA where:
 - 36.4.5.1. time off work to undertake the study is less than 5 hours per week; and
 - 36.4.5.2. the course timetable prevents the employee from being able to have a meal at home until after 8.00 pm.
- 36.5. Rest relief after overtime
 - 36.5.1. Employees must have a minimum of 8 consecutive hours off work plus reasonable travelling time, between ceasing overtime and recommencing work. Where an employee has not been provided with this, they may be absent from work without loss of salary until they have had 8 consecutive hours off work.
 - 36.5.2. If an employee is required by CASA to resume work or continue without having 8 consecutive hours off work, they will be paid double time for all hours worked until they have had 8 consecutive hours off duty.
 - 36.5.3. These rest relief provisions only apply to breaks after approved overtime, except in relation to:
 - 36.5.3.1. emergency duty unless the actual time worked on emergency duty is at least 3 hours on each call; or
 - 36.5.3.2. overtime not exceeding 3 hours that is worked immediately before the commencement of an ordinary shift.
- 36.6. Time off in lieu of payment for overtime
 - 36.6.1. Time in lieu can be used in place of overtime where both the employee and their manager agree. The amount of time that is to be used as time in lieu is calculated at

the overtime rates for duty performed on Monday to Friday and on a 1 for 1 basis for Saturdays, Sundays and Public Holidays.

- 36.6.2. The time in lieu is to be taken at a time that is mutually agreeable between the employee and their manager. This should be within 4 weeks of the overtime having been worked and should not be more than 8 weeks after the overtime was worked.
- 36.6.3. Any unused time off in lieu accrued under sub-clause 36.6.1 held by an employee after 8 weeks of working the overtime or at termination of their employment will be paid out at the overtime rate it was accrued at. Managers should make every effort to allow the employee to take the time in lieu during the 8-week period or before their termination date.

36.7. Overtime transport

- 36.7.1. Where an employee works overtime at a time when there is no normal public transport available, the employee may take a taxi from work to their home at CASA's expense.

37. Emergency duty

- 37.1. Emergency duty arrangements only apply to employees at or below the Overtime barrier.
- 37.2. Emergency duty is where an employee has ceased ordinary hours and they are called to work to meet an emergency and did not get notice of this additional duty before they finished their ordinary hours. This does not include shift workers whose duty for that day is varied by alteration of commencement of the scheduled shift to meet an emergency.
- 37.3. All overtime that is classified as emergency duty is paid at double time and includes all time worked plus reasonable and necessary travel time to and from work.
- 37.4. The minimum payment for emergency duty performed on Mondays through to Saturdays is 2 hours at double time. This minimum applies to each separate attendance.
- 37.5. The minimum payment for emergency duty performed on Sundays is 3 hours at double time. Where more than 1 attendance is required for emergency duty on a Sunday, a minimum payment of 3 hours should be made only for the first attendance. Any other emergency duty performed on the Sunday attracts a minimum payment of 2 hours.
- 37.6. On public holidays, emergency duty is paid at the normal overtime rate of double time and a half unless the employee is a shift worker in which case the shift penalties apply.
- 37.7. Motor vehicle allowance for emergency duty.
 - 37.7.1. Where an employee uses their own vehicle to travel to and from emergency duty, they are entitled to motor vehicle allowance as set out in clause 42.
- 37.8. Rest relief after emergency duty
 - 37.8.1. Where an employee performs emergency duty the rest relief provisions under clause 36.5 will apply.
- 37.9. Meal Allowance for emergency duty
 - 37.9.1. Where an employee performs emergency duty during a meal period as specified in sub-clause 36.4.3 and they are unable to take a break then the employee is entitled to